

**\*\*Dates and Research, Garante Ghiglia: "We are a guarantee, not an obstacle"\*\*\***

Interview with Agostino Ghiglia, member of the Garante for the protection of personal data  
(by Enrico Sbandi, INNLFES, August 1, 2024)

**\*\*Competence, Curiosity, Concreteness.\*\*** The three Cs, for once, do not refer to a good coffee – forgive the impertinence – but to an Authority. Agostino Ghiglia speaks from a robust experience that allows him to focus on solutions before constraints. He is driven by a desire to discover that leads him to tinker with computers and tablets in order to experiment directly and translate into lived experience the themes on which he is called to intervene, as a member of the board of the Garante for the Protection of Personal Data. The Authority that asked for a license and registration from a ChatGPT that was speeding along at a thousand miles an hour, the first in the world to raise the issue of protecting individuals' data in the terabytes of information fed to computers to train LLMs, the AI language models. This has earned him enemies and even attracted threats.

The topic is quite delicate when it comes to sensitive data from medical records. Where intervention is needed to balance two rights of individuals: the right to health and the right to the confidentiality of their data. How do you regulate this, Dr. Ghiglia?

**\*\*\***It depends on which data is being processed and why.**\*\*** First, we assess its compliance with the principle of purpose of processing contained in the European regulation on personal data. If I need to undergo a procedure, it is entirely legitimate for the surgeon to have an overview of my situation. This does not mean that anyone in the same hospital can open and rummage through my medical record. The purpose alone is not enough. The freedom to access my data must be proportionate to the needs. The Electronic Health Record, when operational, will make everything simpler.”

**\*\*A hot topic, that of the EHR.\*\*** It seems that the anti-EHR voices are getting louder. Wasn't the anti-vax movement enough?

“There is a difference to be made between data for private use, the individual's relationship with healthcare, and states of emergency, the mandatory health treatments that the Constitution also provides for. During the pandemic, at first, it was thought that collecting excessive personal data beyond the purposes for which they were intended would better combat the disease. And it would have gone that way if it weren't for the careful vigilance of the Garante. However, the pizza maker, to let me enter his establishment, should not and could not care where I lived or any past health issues I may have had. We intervened by warning the Government: in the original version of the green pass, all our data were included, whereas, as happened in subsequent versions, only name, surname, date of birth, and green checks to indicate a test or vaccine were sufficient.”

**\*\*In the health record, the data is complete...\*\***

“Inside, there will be my entire clinical history starting from November 2020, both public and private, unless I exercise my right to object and withdraw. For the part preceding that date, the Garante has prescribed to the State and Regions information campaigns to inform citizens that – for data prior to 2020 – it was their right to oppose the inclusion of such data in the EHR. Very few have exercised this right. It is a choice that pertains to the intimate sphere of the person, to their culture, to their possible religiosity or spirituality. In the meantime, we had to notify all Italian Regions because there are disparities, and it is not possible to launch such a tool while there are 20 systems marked by differences that do not allow these rights to be guaranteed uniformly.”

**\*\*In Life Science and Digital Health, data is even more precious.\*\*** How flexible can and should we be in protecting its confidentiality if the purpose outlined by the principle is framed with a broader perspective?

“A recent amendment to the Privacy Code, resulting from our intervention, concerns Article 110 (approved with Article 44 of Decree Law 2/3/2024 No. 19, ed.). The Garante's approval is no longer required; only notification is needed, while the preventive impact assessment remains with the consent of the local ethics committee. The Italian privacy code does not hinder research activities; I invite anyone who claims otherwise to prove it with documentation. In my four years of experience at the Authority, out of about twenty research projects, only in one case was the approval missing, and in a couple of others, clarifications were requested. From our side, there has always been support aimed at

facilitating research. The new formulation of Article 110 further facilitates this process. Every time we talk about the protection of personal data, it is difficult to generalize. Many research projects do not necessarily have to be conducted 'in corpore vili'; they can also be done on synthetic data, and I can work on statistical data."

**\*\*However, there are cases where one cannot disregard specific data about the person. How to regulate?\***

"In specific cases, with an undeniable purpose, it is sufficient to refer to the Code. Consent can be bypassed where obtaining it proves to be truly impossible, demonstrating that everything has been done to solicit it. If you then want to indiscriminately combine data and conduct random research on anything, perhaps feeding it to the – albeit very useful – Artificial Intelligence, the Garante will make its voice heard. Web scraping, no. A few months ago, we issued guidelines precisely to impose limits on the ability to access and collect data."

public, for example, to train algorithms. If I intend to manage and use data, I must always be able to demonstrate its source, the express authorization to collect it, and the consent to exploit it. There is a balancing of needs. Not all objectives concern public health; we may be talking about scientific research aimed at developing medicines. All of this is right and correct, as long as it occurs within the balance of individual rights, including the right to revoke it; we have the right to give our consent to submit ourselves or not to a certain type of research. There are not only the needs of science. There are those of democracy, of the individual, and, above all, the need to guarantee freedom.

What if you receive news of a violation?

"When even a single person reports research conducted without consent being obtained, it is the responsibility of the Authority to open an investigation to understand whether the promoter of that research has done everything possible to obtain that consent. But I want to reassure the citizen, data concerning even small and identified groups of people affected by a specific condition are always collected and cataloged only after being anonymized. At that point, it is essential that the processes of anonymization are serious; for statistical purposes, age, condition, and disease progression are needed, not name, surname, and address. It is crucial that the data cannot be re-identified, that the reverse path is not possible. On this, the Authority is inflexible."